

STATE OF NEW YORK

9746--A

Cal. No. 887

IN SENATE

April 2, 2026

Introduced by Sens. BAILEY, SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Insurance -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the insurance law, in relation to clarifying the application of subsection (d) of section 4226 of such law

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subsection (d) of section 4226 of the insurance law is
2 amended to read as follows:

3 (d) Any such insurer that knowingly violates any provision of this
4 section, or knowingly receives any premium or other compensation in
5 consequence of such violation shall, in addition to any other penalty
6 provided in this chapter, be liable to a penalty in the amount of such
7 premium or compensation, which penalty may be sued for and recovered by
8 any ~~[person]~~ resident of this state and any policyholder, contract hold-
9 er, certificate holder, or beneficiary of a policy, contract, or certif-
10 icate subject to paragraph one of subsection (b) of section three thou-
11 sand two hundred one of this chapter, aggrieved for ~~[his]~~ their own use
12 and benefit, in accordance with the provisions of the civil practice law
13 and rules.

14 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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